

Lalmani v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 January 2020 · Writ-C No. 1364 of 2020 · Writ-C No. 1364 of 2020 · **Writ disposed; EE to pass speaking final order; s.127 left open.**

HEADNOTE

A writ seeking to quash a recovery certificate and to compel meter-based billing was disposed of without deciding the dues. The consumer was directed to appear before the Executive Engineer with objections; a speaking final order was required; coercive action was stayed for a limited period; and liberty was reserved to appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Lalmani challenged a recovery certificate dated 30 September 2018 and sought a mandamus that the electricity department raise bills according to meter reading. He alleged coercive recovery without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and the electricity department were heard. The High Court did not adjudicate the validity of the recovery or the billing dispute and disposed of the writ on directions.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to speaking final order and section 127 appeal

HOLDING

A writ challenging a recovery certificate, alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005, may be disposed of by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking and reasoned final order within a fixed time, staying coercive action for a limited period or until disposal of the objection (whichever is earlier), and leaving the consumer to the statutory appeal under Section 127 of the Electricity Act, 2003 if aggrieved by that final order. Default in appearing or filing the objection vacates the interim protection and revives the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The writ against the recovery certificate was disposed without a merits decision, by directing a speaking final order of the Executive Engineer and reserving liberty to appeal under Section 127. ¶ 1

alternative-remedy-section-127-appeal If aggrieved by the Executive Engineer's final order, the consumer was left to appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 30 SEPTEMBER 2018

Certiorari was sought but the dues were not examined on merits. ¶ 1

NOT DECIDED — WHETHER RECOVERY WAS TAKEN WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged by the petitioner; compliance was not adjudicated. ¶ 1

NOT DECIDED — ENTITLEMENT TO BILLS ACCORDING TO METER READING

Mandamus was sought; neither granted nor refused on the merits. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.